Submission to the Joint Standing Committee on Electoral Matters
Inquiry into all aspects of the 2025 federal election and related matters

Supplementary submission

Malcolm Baalman

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1. Additional note on Fixing the Term of the House

I very much regret to say that there is an error in the text (and a table) of my original submission.

The problem is in relation to Victoria's special arrangements for an early dissolution, which were inserted into its Constitution in the early 2000s.

On page 7 of my submission I wrote that "*Victoria has an awkward arrangement where there is no capacity for any early election*", and in the table below on that page that Victoria has "*No provision for early dissolution*".

That is literally incorrect; the modern provisions of the Victorian Constitution indeed *do* make provision for an early dissolution. I was misled by my memories of the only occasion to date in which the Victorian provision has come close to being applied, in relation to a long-running political 'crisis' in the state Parliament in 2011-14, which I observed as a Victorian public servant.

The situation during the 2010-14 term of the 88-seat Legislative Assembly was that the government/opposition seat balance stood at 45:43. From 2011 onward one government member became embroiled in an ongoing character scandal, and became highly antagonistic to the Premier who had striven to discipline him. By 2013 the MP had left the government party to sit as an independent, and refused to commit support to the government if the then Premier remained. The ongoing affair impacted the politics of the Assembly for much of the term, and led to continuous speculation what would happen if the MP should cross the floor, or if he were to resign and the government were to lose the (quite marginal) seat in a by-election.

This was essentially not a crisis over which party should form government, or its ability to pass appropriation bills, but a problem of managing a 'rogue' MP who was in a position to prosecute his goals by threatening the premier, and if necessary the government as a whole. The case where an antagonistic former government member is determined to have their revenge on a party leader, or otherwise exercise political leverage over legislation or other matters, against the background of constitutional provisions preventing an early dissolution, greatly clouds which actors can be held 'responsible' for ultimate political outcomes. In the circumstances, the *lack* of *potential* for an election exacerbates the leverage of the individual MP against the government and premier.

Parliamentary tensions of a similar nature impacted on governance in the ACT Legislative Assembly in 1999-2000, to which this author was also a close witness as an adviser to an Independent MLA.

The early dissolution provisions of the relevant state constitutions that have adopted fixed terms, by means of constraining the Governor's power to dissolve at any time, are only activated in circumstances where the numbers *shift* on the floor of the house during a term (although a numerical deadlock may also occur immediately after an election). Among the wide variety of combinations of numbers that may shift, a government with a one-seat majority facing the loss of one member will probably be the most common such event to occur.

The Victorian 2011-14 tension was made the more acute because the state's Legislative Assembly is constituted with an *even* number of members. The wording of the modern term-fixing limitations on the power to dissolve a house 'early' inserted into the Victorian Constitution presents awkward problems if the vote on the floor of a house becomes *tied*, with votes of confidence – or on appropriation bills – unable to be resolved with clarity.

Most of Australia's lower-houses are carefully established with an *odd number* of members. Victoria is unique in that it has an even number. The national House of Representatives arrangements do not set a precise total number of members, and at the 15 elections since 1984 the application of the formula for allocating seats among states and territories has seen sizes ranging from 147 to 151 members, with 4 odd-numbered houses and 11 even-numbered houses. If JSCEM wishes to recommend a fixed-term option, it should grapple with this conundrum. This will not be straightforward; if the present seat allocation rules are all maintained, an additional rule to guarantee an odd-numbered total is logically problematic.

Separate from the even-number problem, the bigger picture is that more complex, multi-party parliaments seem likely to be increasingly common. In our national political culture, the near-total two-major party support that prevailed from the end of the WW2 to the 1970s is long gone. The continuation of the role of the two major parties through a more diverse period up to the last decade is now accelerating in its decline, with major party support in aggregate now consistently below 70%, and in polling in some jurisdictions, sometimes below 60%, of voters. Our national 'party system' may very well fragment further, leading to mid-term changes – or threats of changes – in government-forming majorities becoming increasingly frequent. It would be entirely consistent with representative democracy if it were to do so. But the operating rules of our system of government need to be match-ready for the range of circumstances that may lie ahead. That suggests the need for great caution in the adoption and design of attempts to tightly fix the term lengths of parliaments.

Constitutional founders and scholars regularly praised the flexibility and elasticity of the British-origin constitutional culture. The length of parliaments, the kinds of party composition they would have, the nature of the political conflicts that might emerge, and the art of handling such conflicts, and the workings of 'responsible government' itself were all variables that were to be met through approaches which each generation would craft. Theorists of responsible government acknowledged the significant powers of premiers and governments, but placed faith in the public appropriately holding them responsible for their uses of such power. The problem with the modern desire to fix term lengths is that it may be attempting *too much control*, and not enough respect for flexibility.

Below is a fresh version of the table from page 7 my original submission, correcting the error in the original; the only text that is different is at the bottom right-hand corner.

Table 1A: term lengths, fixing of election timing, and dissolution arrangements

State	Expiry of house	Regular date of election	Provision for early dissolution
Western Australian Legislative Assembly	Elections for the state *Legislative Council* are to occur on the 2nd Saturday in March every 4 years. In February of such a year the *Legislative Assembly* is dissolved, and Assembly elections are to occur on the same day as Council elections.		Governor or Governor-General may dissolve the house early: – on the advice or the Premier/Prime Minister – but alternatively on their own discretion if the government has lost the confidence of the house
Australian House of Representatives	Constitutionally set time-bound limit for the *expiry of the house*	3 years from the date of the first sitting of the House following the last election	
New Zealand House of Representatives		3 years from the date of the return of the writs for the last election	
Tasmanian House of Assembly		4 years from the date of the return of the writs for the last election	
New South Wales Legislative Assembly		1st Saturday in March in 4th year following last election	Government cannot initiate early election at will; Governor may dissolve the house only if: – no-confidence motion is passed, and no motion of confidence is passed, and Governor considers that no government can be formed – motion of confidence is defeated (SA) – Assembly rejects/fails to pass an appropriation bill – Assembly rejects/fails to pass 'bill of special importance' (SA) – Note: where house vote is *tied*, situation can become deadlocked (Victoria)
Queensland Legislative Assembly	The *date for the election* is fixed in the state constitution (Commonwealth law for the territories) (Emergency provisions for shifting election date in case of Commonwealth election or natural disaster)	Last Saturday in October in the 4th calendar year following the last election	
South Australian House of Assembly		3rd Saturday in March in the 4th calendar year following the last election	
ACT Legislative Assembly		3rd Saturday in October in the 4th year following the last election	
NT Legislative Assembly		4th Saturday in August in the 4th year following the last election	
Victorian Legislative Assembly		1st Saturday in November nearest to 4th anniversary of last general election	

2. Additional note on the Senate transfer glitch

In regard to the discussion (original submission, page 10) of the 'glitch' in the Electoral Act that treats all ballots as equal in value, even where some ballots have already been 'part-used' in electing candidates already declared elected, on 13 November 2025 Antony Green posted a long article unpacking this issue, here.

Green's piece illustrated the problem with an example from the 2025 Senate count in NSW, which did *not* cause a change in which candidates were elected, but shows how such a result is certainly possible. He also refers to a separate post from 2022 in which he identifies that this process error actually changed election results for the Victorian Legislative Council in both 2014 and 2022.

It may be helpful to locate the error precisely in the Commonwealth Electoral Act. The problem can be pinned down to the use of the expression " *... the total number of ballot papers ...",* without making any provision for taking into account reduced value following surplus transfers at early stages of the count, in clause 273(9)(b), near the bottom of page 331 of the official printing of the Act. Fixing the issue would require a rewrite of at least this sub-para, and may have collateral impacts in other clauses of section 273.

(Note that section 273, which sets out the Senate ballot counting process, extends to 32 subclauses across 15 pages. This long and unwieldy legislative text provides for many points of detail in the counting process which are all important, but it could do with a complete re-write and simplification.)

3. Additional note on the enrolment and voting of young people

Further to my discussion (original submission, page 11) on this topic, please note that Section 100 of the Electoral Act already permits people aged 16 or 17 to have their names added to the Roll on their own application. This early enrolment does not create any *right to vote* prior to turning 18.

> **Commonwealth Electoral Act 1918**
>
> **100 Claims for age 16 enrolment**
>
> (1) A person who:
>
> (a) has turned 16, but is under 18, years of age; and
>
> (b) would be entitled, in respect of residence at an address, to be enrolled for a Subdivision if he or she were 18 years of age may send or deliver a claim to have his or her name placed on the Roll for that Subdivision to the Electoral Commissioner.

The UK Government has a clear policy of reform to allow voting at 16 across the UK by the time of the 2029 election. Voting at 16 is already the case for elections to the Scottish Parliament.

I hope this additional submission is of use to the Committee. Once again I apologise that my original submission contained an error, and I hope it has caused no inconvenience.

Malcolm Baalman